

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,
Plaintiff,

v.
MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

PLAINTIFF'S OPPOSITION TO THE FEDERAL
DEFENDANTS' MOTION TO DISMISS

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I. INTRODUCTION

1. Defendants' motion and supporting memorandum (ECF No. 69) ("Mem.," cited by its printed pagination) announces its method on its third page: the Court can resolve the claims "on jurisdictional grounds alone, without needing to painstakingly sift through his filings." Mem. at 3. The motion keeps that promise: it engages no exhibit's content (Exhibit N appears only to be dismissed as "extraneous"), no forensic finding, none of the injury paragraphs, and none of Plaintiff's substantive responsive filings (ECF No. 68, which answered the service Notice this motion rides, never appears); and the result is a brief whose every major argument depends on the record it declined to read.

2. Its Rule 8 section calls the Third Amended Complaint an indecipherable "screed"; five pages later, the same brief inventories Counts VI through XVIII paragraph by paragraph, defendant by defendant, accurately. Mem. at 8, 13–15 & nn.2–3. Its standing section pronounces the pleading unintelligible ("[w]hatever any of that means") while quoting only the structural-claims paragraphs and passing over, in silence, the paragraphs that plead packet-level, forensically documented injuries to this Plaintiff's accounts, devices, and litigation work product. Mem. at 17; *see* § II.B, *infra*. Its service section litigates against a Notice that Plaintiff answered a month before this motion was filed. *Compare* Mem. at 8–9 *with* ECF No. 68. Its sovereign-immunity walk addresses statutory damages claims the operative pleading asserts against the corporate Defendants, not these movants. And its *Bivens* and immunity sections ask the Court to credit a hypothetical (the fear that officials who can be questioned will not act) in the same brief that dismisses the citizen's pleaded, completed injuries as not worth reading. Mem. at 17, 24.

3. This opposition answers the motion it received. Section II establishes standing on the well-pleaded allegations the motion never engaged; Section III shows that sovereign immunity

bars none of the claims actually asserted against these Defendants; Section IV answers the service argument from the record (ECF No. 68) the motion omits; Section V answers Rule 8 with the motion's own count-by-count walk; Sections VI through VIII address *Bivens*, the Speech or Debate Clause, and qualified immunity, each on its own authorities' terms; and Section IX examines, at their foundation, the immunity authorities the motion invokes, not to unsettle any holding but because the record requires it. Section X addresses the with-prejudice request no part of the motion supports, and collects the method that runs through all of it: at each dispositive point, the motion appeals to the Court's discretion while omitting the text that commands otherwise or the predicates that condition it.

4. Two things this opposition does not do. It does not ask the Court to overrule or narrow any immunity holding; the grounds in Sections III and VI through VIII defeat the motion on the doctrines' own stated terms. Section IX addresses a distinct and narrower point: to the extent Defendants invoke the immunity lineage as settled, neutral authority whose pedigree forecloses examination, that tender is measured against the lineage's own foundational record; and the Court is asked not to overrule any holding, but to withhold the deference that pedigree claims. And it does not ask the Court to take any pleaded fact as proven; it asks only for what Rule 12 provides: that the operative pleading be read, taken as true, and measured against the law the movants themselves cite.

II. PLAINTIFF HAS ARTICLE III STANDING

A. The Governing Standard, and the Posture the Motion Cannot Escape

5. On a Rule 12(b)(1) motion, the "standing inquiry" may be "especially rigorous," *Clapper v. Amnesty International USA*, 568 U.S. 398, 408 (2013) (quoting *Raines v. Byrd*, 521 U.S. 811, 819–20 (1997)), only as a matter of what must ultimately be proven; at the **pleading**

stage, the plaintiff's burden is to *allege* facts that, taken as true, establish injury in fact, traceability, and redressability. "At the pleading stage, general factual allegations of injury resulting from the defendant's conduct may suffice, for on a motion to dismiss we presum[e] that general allegations embrace those specific facts that are necessary to support the claim." *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 561 (1992); *accord Warth v. Seldin*, 422 U.S. 490, 501 (1975).

6. A Rule 12(b)(1) attack is either *facial* or *factual*, and the distinction is dispositive here. A **facial** attack tests the sufficiency of the pleading and accepts the well-pleaded jurisdictional allegations as true; a **factual** attack contests the truth of the jurisdictional facts and requires the movant to engage evidence, which the court may then weigh. *See Phoenix Consulting Inc. v. Republic of Angola*, 216 F.3d 36, 40 (D.C. Cir. 2000). Defendants are confined to a **facial** posture for a reason of their own making: the evidence that proves Plaintiff's injury is maintained in conventional form and was formally offered to every party under Local Civil Rule 5.4(e)(1), and **no defendant has requested it** (ECF No. 53, §§ VI–VII). A movant who has declined the proof cannot mount a factual challenge to the injury that proof establishes. The motion confirms the posture: its standards section recites the factual-attack line: the Court "may consider materials outside the pleadings," Mem. at 4–5 (quoting *Jerome Stevens Pharmaceuticals, Inc. v. FDA*, 402 F.3d 1249, 1253 (D.C. Cir. 2005)); but the motion tenders no evidence, engages no exhibit, and rests entirely on its characterizations of the pleading; it is facial in operation, and the well-pleaded allegations control. The recited authority addresses a different category of material in any event: the "materials outside the pleadings" a court may consider on a factual attack are evidentiary submissions by which contested jurisdictional facts are resolved. Plaintiff's exhibits are not materials outside the pleadings; they are attached to the operative complaint and are "a

part of the pleading for all purposes." Fed. R. Civ. P. 10(c). And the motion's own recited formulation (the complaint "supplemented by undisputed facts evidenced in the record," Mem. at 4) is additive on its face: a complaint *supplemented*, never a complaint disregarded; the discretion licenses a court to consider more than the pleadings, and it nowhere licenses a movant, or the Court, to consider less than the pleading itself. The motion converts a judicial discretion to expand the record into a party-administered dispensation to disregard the record's pleaded core; and announces the dispensation as its method: the Court can resolve the case "without needing to painstakingly sift through his filings." Mem. at 3. Should the Court instead treat any element as factually contested, § II.G, *infra*, states the consequence: jurisdictional discovery, not dismissal.

7. This Court has already screened this pleading for standing once. It dismissed the *original* complaint *sua sponte* under *Lujan*'s generalized-grievance rule, and ordered amendment. The operative Third Amended Complaint is the cured pleading; it does not re-plead a "generally available grievance about government," *Lujan*, 504 U.S. at 573–74, but a concrete course of conduct directed at this Plaintiff, his accounts, his devices, and his litigation work product. The motion compresses that history: it asserts that the operative complaint "does nothing more than raise the same generalized grievances brought in his first complaint," Mem. at 17, and re-quotes the August 20, 2025 minute order. But that order addressed the *original* complaint, a pleading dismissed the day after filing, before the forensic record existed in this case, *see* Mem. at 3 (the motion's own procedural history); and the operative complaint stands three amendments and an intervening forensic record removed from the pleading the motion equates it to. The difference between the dismissed pleading and the operative one is the difference this Section sets out.

B. Plaintiff Pleads a Concrete, Particularized Injury, Not a Generalized Grievance

8. Injury in fact requires a harm that is "concrete and particularized" and "actual or imminent." *Lujan*, 504 U.S. at 560. Concreteness is satisfied where the alleged harm bears a "close relationship" to a harm "traditionally recognized as providing a basis for a lawsuit in American courts." *TransUnion LLC v. Ramirez*, 594 U.S. 413, 424–25 (2021); *Spokeo, Inc. v. Robins*, 578 U.S. 330, 340–41 (2016). Plaintiff pleads two such harms, each personal to him and each with a settled common-law analogue.

9. First: the targeted intrusion and the capture of Plaintiff's own property and work product. The Third Amended Complaint and its supporting forensic record allege that Defendants' infrastructure (i) directed TCP RST-injection attacks at Plaintiff's own network connection: 5,829 spoofed packets across 39 capture days, bearing three independent forgery markers; (ii) operated a persistent surveillance-and-telemetry architecture against Plaintiff's own paid accounts and devices, transmitting in cleartext on every API request a device-fingerprint hash that survives every network-layer countermeasure Plaintiff deployed and is keyed alongside his account identifier; and (iii) captured Plaintiff's litigation work product, legal memoranda, and the working repository of this very action. TAC ¶¶ 139, 285, 288; Exs. D-1, D-30, D-31; Ex. E-15; the full attribution showing, with its physical-impossibility proofs, is assembled at App I §§ II–VI. Intrusion upon a person's chattels and effects, conversion of property, and interception of private communications are paradigmatic common-law harms. *TransUnion*, 594 U.S. at 425. This is injury to *Plaintiff*, not to "every citizen's interest in proper application of the . . . laws." *Lujan*, 504 U.S. at 573.

10. Second: the real-time, content-keyed throttling of Plaintiff's paid service while he investigated that very architecture. A persistent wire capture spanning 81 hours (6,955 logged

requests) establishes that, on the single tuple of Plaintiff's litigation-active account and his federal-discovery work device, the receiving infrastructure's pre-response processing time was elevated $4.6\times$ at the 90th percentile, a deviation measured at Cohen's $d = 4.79$, $p < 1\times 10^{-15}$ at controlled comparison against Plaintiff's own other accounts. App P § V.H ¶ 255 (Ex. H-12). The elevation **began on the request immediately following Plaintiff's query of his own "DATADOG ISRAEL LTD/analysis" working directory** and sustained for approximately three hours; per-request latency tracked the litigation-relevance of the content, term by term. *Id.* (setting out the per-term table). The harm is economic (degradation of a paid service the consumer purchased) and is, in addition, the impairment of Plaintiff's ability to prosecute this action, both concrete, both particularized, both *ongoing*, not conjectural. *Cf. Clapper v. Amnesty International USA*, 568 U.S. 398, 409 (2013) (injury must be actual or certainly impending; satisfied here by documented, repeated, measured events).

11. These are not allegations of "harm to . . . every citizen['s]" interest, *Lujan*, 504 U.S. at 573; they are allegations that Defendants attacked *this* litigant's connection, captured *this* litigant's privileged files, and throttled *this* litigant's service the moment he examined the entity at the center of this case. That is the textbook particularized injury, pleaded with forensic specificity the ordinary complaint never approaches.

12. The motion's own treatment of the pleadings demonstrates the point. Its standing section quotes and paraphrases a handful of structural-claims paragraphs (TAC ¶¶ 184–87 and ¶ 31, the quotation of ¶ 187 carrying no citation at all), and dismisses them with "[w]hatever any of that means, it clearly does not pertain to any specific or particularized injury to Plaintiff." Mem. at 17. The dismissal required editing: the ¶ 187 quotation omits the named defendant, Carr, without a bracket, and its bracketed period, "§ 326[.]," ends the sentence exactly before its

pleaded continuation, "and coordinated with Comcast to enable ISP-level surveillance of Plaintiff's constitutional litigation preparation"; and the one parties paragraph the section quotes, ¶ 31, adjoins the paragraph it skips, ¶ 30, which pleads that same surveillance and which the same brief quotes in full at Mem. at 27. It never mentions the paragraphs that plead the particularized injuries: the per-request device identifier, the captured privileged litigation work product, the 81-hour content-keyed degradation, and the packet-level attribution chain (¶¶ 9–10, *supra*). A threshold attack that quotes the structural paragraphs, edits out their Plaintiff-specific clauses, and skips the injury paragraphs has not engaged the pleading it moves against; "whatever any of that means" is not a substitute for reading what it means. On a challenge that operates facially, the paragraphs the motion declined to quote control its disposition.

C. The Injury Is Fairly Traceable to These Defendants

13. Traceability requires a causal connection "fairly . . . trace[able] to the challenged action of the defendant," not proximate cause, and it is satisfied even where the causal chain runs through the conduct of multiple actors whose response is predictable. *Lujan*, 504 U.S. at 560; *Bennett v. Spear*, 520 U.S. 154, 168–69 (1997); *Department of Commerce v. New York*, 588 U.S. 752, 767–68 (2019). Here the connection is documented at the packet level. A single IP address, 34.149.66.137, is simultaneously (i) the Datadog telemetry endpoint hardcoded into the Anthropic client; (ii) the spoofed source of the RST-injection attacks on Plaintiff's tunnel; (iii) the destination to which Plaintiff's own software reports those attack signatures within fifteen seconds; (iv) visible to the carrier in cleartext on Plaintiff's physical link; and (v) force-enabled against Plaintiff's specific account by a server-side rule keyed to his account identifier. Exs. E-34, D-1, D-30, E-35, D-34, E-39; App P § V.A ¶ 228; the identification and its verification are

set out at App I §§ IV, VI. The injury is tied to specific Defendants through specific infrastructure, the antithesis of the unattributable, diffuse causation that defeats standing.

14. The concert among Defendants reinforces, rather than complicates, traceability. The corporate Defendants route Plaintiff's data through the same four sub-processor intermediaries, each of which (by its own published disclosure) names both Anthropic and OpenAI as recipients (Memo E § VI.D); the government Defendants and the corporate Defendants are bridged at the same infrastructure (Memo C § IX.E). Where coordinated conduct produces a single injury, each participant's contribution is fairly traceable to the result.

D. The Injury Is Redressable

15. The primary relief Plaintiff seeks on the core claims is *declaratory*: a determination of the validity of the conduct, operating on no party's assets (TAC ¶¶ 337–349); and injunctive relief reaching the documented mechanisms (cessation of the per-account force-rule and the content-keyed throttle; an order preserving and producing the pipeline records) (TAC ¶ 350(a), (b), (d)). A declaratory judgment that the challenged conduct is unlawful, and an injunction against its continuation, would redress the ongoing intrusion, capture, and throttling.

Redressability does not demand complete redress: standing exists where the risk of the harm "would be reduced to some extent if petitioners received the relief they seek," *Massachusetts v. EPA*, 549 U.S. 497, 526 (2007), for a plaintiff "need not show that a favorable decision will relieve his every injury," *id.* at 525 (quoting *Larson v. Valente*, 456 U.S. 228, 244 n.15 (1982)). Where an officer acts beyond constitutional authority, "his actions . . . are considered individual and not sovereign actions," and "may be made the object of specific relief." *Larson v. Domestic & Foreign Commerce Corp.*, 337 U.S. 682, 689 (1949).

E. The Generalized-Grievance Bar Does Not Apply, and the Enforcement-Default Record Confirms It

16. Defendants will characterize the suit as a generalized grievance better left to the political branches. The characterization fails twice over. First, as Sections B–D establish, the injury is *particularized*: it is Plaintiff's connection, Plaintiff's files, Plaintiff's account, Plaintiff's service. Second, as to the *structural* constitutional claims (the Origination Clause, the FRE 901/607 conflation, the *Genesis Mission* ultra vires), a unanimous Supreme Court has confirmed standing where "individuals sustain discrete, justiciable injury from actions that transgress separation-of-powers limitations," because "[t]he structural principles secured by the separation of powers protect the individual as well." *Bond v. United States*, 564 U.S. 211, 222 (2011); see Memo I ¶¶ 107–116. And Plaintiff did not arrive at this Court asserting an abstract interest in lawful government; **he was injured while performing the very enforcement function the responsible institutions abandoned.**

17. The abandonment is pleaded as fact, and the government's own motion narrates the sequence. During the relevant window the Executive "eliminated 17 inspector generals, dismantled FBI Public Corruption units, terminated Kleptocracy Programs, disbanded Foreign Influence Task Forces, and implemented [a] 180-day Foreign Corrupt Practices Act enforcement pause," App A ¶ 71; and the Department's July 7, 2025 memorandum pronounced a credibility verdict ("no credible evidence") that foreclosed investigation before it began. App A § II.F; see Ex. A-6. The motion's background section recounts the rest in the movants' own words: Plaintiff "reported his suspicions of criminal activity to twelve FBI agents to no avail," "took matters into his own hands," and "determined that federal regulators were not doing their jobs, resulting in an 'enforcement void.'" Mem. at 3. Enforcement was declined; the citizen performed the abandoned

function; and the injuries pleaded in Sections B–D were sustained in performing it. The standing consequence is *Bond*'s. 564 U.S. at 225–26; *see* ¶¶ 19–20, *infra*.

18. Into that gap a *pro se* litigant reconstructed, from public records and his own hardware capture, the architecture set out in Appendix P, and marked, in that Appendix's § XI, the precise points at which private capacity ends and only compelled process can reach. The Defendants can compel all of it; Plaintiff can compel none. That asymmetry is not a reason to deny standing — it is the measure of the default that produced the injury.

19. *Bond* did more than permit the challenge; it identified the injury: "[t]he unconstitutional action can cause concomitant injury to persons in individual cases," *Bond*, 564 U.S. at 225, and a plaintiff already "a party to an otherwise justiciable case or controversy" by virtue of his particularized injuries (Sections B–D) "is not forbidden to object that [his] injury results from disregard of the federal structure of our Government." *Id.* at 225–26. The concomitant injury here is the cost of redress itself, developed of record at Memo I ¶¶ 159–165. And the Court has reserved from the rule of unreviewable enforcement discretion the agency policy "so extreme as to amount to an abdication of its statutory responsibilities," *Heckler v. Chaney*, 470 U.S. 821, 833 n.4 (1985), the reserved case this enforcement record presents. **The doctrine carries its own limiting principle, which is also the complete answer to any floodgate concern: the concomitant injury belongs only to the citizen who actually bears the cost of redress, who investigates and litigates where no institution will, and not to the millions who "could identify a binary textual violation but do not act," who "have no concomitant injury and no standing."** Memo I ¶ 164. That is the antithesis of a generalized grievance shared with all citizens; it is the most particularized injury the enforcement void can produce, borne by one.

20. To be clear about what Plaintiff does *not* assert: he claims no private right to compel a criminal investigation or prosecution. *Linda R.S. v. Richard D.*, 410 U.S. 614, 619 (1973). What he asserts is *equitable standing* to obtain a declaration that the structural violations are unlawful, relief *Bond* confirms is available to an individual party to an otherwise justiciable controversy, 564 U.S. at 225–26, not an order that the Executive prosecute anyone. The enforcement default matters as evidence (the *Heckler* abdication posture), as the explanation for why the particularized injury arose in the enforcement role, as the Rule 26(b) basis for the discovery addressed in Section G, and as pleaded ultra vires conduct; none of that depends on a duty owed personally to Plaintiff to investigate.

21. One further point about the motion's framing. To call the Plaintiff's response to the enforcement default "taking matters into his own hands" and a freelance "investigation," Mem. at 3, is to recast two constitutional rights as vigilante self-help. The Plaintiff wielded no enforcement power and asserted none (§ 20, *supra*); he gathered public records, documented official conduct, and brought it to a court, exercising the right "to petition the Government for a redress of grievances." U.S. Const. amend. I. Such litigation "is not a technique of resolving private differences"; it is "a form of political expression" and "may well be the sole practicable avenue open to a minority to petition for redress of grievances." *NAACP v. Button*, 371 U.S. 415, 429–30 (1963). Nor is the characterization harmless: to brand a citizen's protected petitioning as lawless self-help is the same recharacterization of protected activity the Complaint pleads as retaliation, and an official framing that would deter a person of ordinary firmness from petitioning at all is what the First Amendment forbids. The motion does not answer the Plaintiff's exercise of his rights; it illustrates the injury.

F. The "patently insubstantial" Attack Fails on Its Own Authorities

22. Defendants make the invitation expressly: "conspiracy theories qualify as 'patently insubstantial' allegations" that "present[] no federal question suitable for decision," Mem. at 12 (citing *Best v. Kelly*, 39 F.3d 328, 330–31 (D.C. Cir. 1994)); *see id.* (quoting *Tooley v. Napolitano*, 586 F.3d 1006, 1009 (D.C. Cir. 2009); *Hagans v. Lavine*, 415 U.S. 528, 536–37 (1974); and *Levering & Garrigues Co. v. Morrin*, 289 U.S. 103, 105 (1933)). The invitation collapses on contact with the record and with those decisions. *Hagans* itself *reversed* a jurisdictional dismissal, reserving the doctrine for claims "essentially fictitious," "obviously frivolous," or "no longer open to discussion." 415 U.S. at 536–37. *Best* reserves "patently insubstantial" for the "essentially fictitious": its examples are "bizarre conspiracy theories" and "fantastic government manipulations." 39 F.3d at 330. A complaint resting on United States patents, federal-register materials, party admissions, publicly filed securities reports, and forensically preserved, hash-authenticated source code and packet captures is not of that character. And the failure to state a claim, if any, "calls for a judgment on the merits and not for a dismissal for want of jurisdiction." *Bell v. Hood*, 327 U.S. 678, 682 (1946); *Baker v. Carr*, 369 U.S. 186, 199–201 (1962).

23. A movant cannot, moreover, brand the pleading "fictitious" while declining to examine the authenticated evidence offered to it. Defendants requested none of the conventionally-maintained exhibits (ECF No. 53), engaged none of the Complaint's exhibits, and propose to call insubstantial a forensic record they have not read. A "drive-by jurisdictional ruling" entered on that basis "ha[s] no precedential effect," *Steel Co. v. Citizens for a Better Environment*, 523 U.S. 83, 91 (1998); more to the point, a record this Court has already cleared through screening, and ordered briefed at length, is by definition not one that "requires no briefing at all." The

characterization is also answered under oath: the completed professional transcription is offered expressly in response to it, and the corpus censuses and every underlying record are retained for the Court upon request. Kirchner Decl. ¶¶ 18–19.

24. More than offer the evidence, Plaintiff reduced the Complaint's central forensic predicate to a test the movants could have run in five minutes. The record includes a step-by-step Independent Verification Protocol by which the Court, opposing counsel, or any third party may confirm, from Anthropic's own publicly released source code and without trusting Plaintiff, that the software hardcodes the third-party telemetry endpoint, transmits per-user targeting attributes including the user's email address, and forwards the user's own network-failure signatures to that same endpoint. Pl.'s Independent Verification Protocol, ECF No. 57-1. The protocol is candid about its reach: it establishes the hardcoded predicate and expressly not the network-injection spoofing or the per-user attachment, each of which the Complaint supports through separately identified captures. *Id.* ¶ 4.¹ An allegation a stranger can confirm from the defendant's own code is the antithesis of the "essentially fictitious," "obviously frivolous" claim the doctrine reserves for dismissal. Movants with every incentive and every capacity to rebut a false technical claim in a sentence neither ran the protocol nor identified a single step that fails; they affixed the label "patently insubstantial" to a predicate they declined to test.

G. In the Alternative, Jurisdictional Discovery, Not Dismissal

25. Should the Court treat any element of standing as a contested *fact* rather than a pleading question, the remedy is jurisdictional discovery, not dismissal. Where jurisdictional facts are

¹ The candor does double duty. The motion announces "[a]t the outset" that the pleading "does not connect specific allegations to specific Defendants" and asks the Court instead to "infer" coordination. Mem. at 2. But when the conduct was defendant-specific, Plaintiff connected it himself: his emergency motion isolated the two Defendants responsible, Anthropic and Comcast, in a short, plain, independently testable statement. ECF No. 57. And where the protocol cannot carry an element by itself, ¶ 4 names the specific capture that does. A pleading that indexes its proof defendant by defendant and element by element has not failed to differentiate; and the counts that speak of Defendants collectively do so because concerted action is what they charge. *See* § V ¶ 42, *infra*.

disputed, the court "must give the plaintiff 'ample opportunity to secure and present evidence relevant to the existence of jurisdiction.'" *Phoenix Consulting*, 216 F.3d at 40 (quoting *Prakash v. American University*, 727 F.2d 1174, 1179–80 (D.C. Cir. 1984)). The proportionality calculus under Rule 26(b) points decisively the same way: the dispositive facts (the sub-processor egress and access logs, the per-account configuration store, the contractual chain) are in Defendants' (and their sub-processors') exclusive possession, and Plaintiff has exhausted every source available to a private party (App P § XI). A plaintiff who has pleaded a particularized, packet-level injury and identified precisely what only compelled process can confirm has earned discovery, not a threshold dismissal entered on the strength of evidence the movants declined to examine.

26. For these reasons, Plaintiff has standing to pursue each claim; the motion to dismiss for want of standing should be denied, or, at minimum, jurisdictional discovery permitted.

III. SOVEREIGN IMMUNITY BARS NONE OF THE CLAIMS ACTUALLY ASSERTED AGAINST THE FEDERAL DEFENDANTS

A. The Motion's Statutory Walk Addresses Claims the Third Amended Complaint Does Not Assert Against These Defendants

27. The motion devotes its sovereign-immunity section to a statute-by-statute demonstration that Congress has not waived the United States' immunity from *damages* liability under RICO, the Copyright Act, the DTSA, the CFAA, the ECPA, and 42 U.S.C. §§ 1981, 1983, 1985, and 1986. Mem. at 12–16. The premise is not disputed; the object is missing. As the motion itself demonstrates in its most careful pages (a count-by-count walk of the operative pleading, Mem. at 13–15 & nn.2–3) the statutory damages counts are pled against the corporate Defendants.

28. Plaintiff confirms what the motion's own reading found. Counts XVI and XVII carry express designations ("[a]gainst Anthropic PBC and OpenAI, Inc." and "[a]gainst Anthropic PBC, OpenAI, Inc., and Comcast Cable Communications, LLC"), as the motion's n.3 recognizes. Count XVIII is designated against Anthropic, OpenAI, and Apple. And the conduct pleaded in Counts IX, X, XIV, and XV (TAC ¶¶ 256, 262, 285–88, 289) is corporate conduct: contractual breach, consumer deception, California-privacy violations, and App Store attestations by the corporate Defendants. The motion's observation that these counts "involv[e] only allegations related to corporate Defendants," Mem. at 14, is accurate, and it concedes fair notice: a pleading the movants themselves can inventory. *See* § V, *infra* (Rule 8).

29. The same is true of Counts VI, VII, VIII, XII, and XIII (TAC ¶¶ 220–36, 237–54, 255, 273–84): the racketeering, trade-secret, copyright, interception, and computer-fraud conduct pleaded there is the corporate Defendants' conduct, and those counts seek damages from the corporate Defendants. To the extent any of these counts could be read to seek statutory *damages* from the United States, its agencies, or any federal official in an *official* capacity, Plaintiff disclaims that reading; no such claim is asserted, and no waiver question therefore arises. What the disclaimer does *not* reach: conduct by federal officials in their *individual* capacities, to which sovereign immunity has no application at all, *Clark v. Library of Congress*, 750 F.2d 89, 103 (D.C. Cir. 1984), and which is addressed where the motion addresses it: in its Bivens and immunity sections. *See* §§ VI–VIII, *infra*.

30. One further answer to the motion's framing. Defendants assert that, "given the lengthy and unintelligible nature" of the pleading, "it would be impossible for [the] Court to divine" a waiver. Mem. at 13 (citing *Clark*, 750 F.2d at 102). The preceding two paragraphs performed the divination by the ordinary method (reading the counts), and the motion performed the same

exercise itself one page later. Mem. at 14–15. The pleading is not the obstacle. Nor is the walk careful with its own authorities: at its copyright and trade-secrets links it cites the wrong sovereign's immunity. For copyright it offers *Allen v. Cooper*, 589 U.S. 248, 253 (2020), as having "explicitly found" that 17 U.S.C. § 501 "contains no waiver of sovereign immunity," Mem. at 13; but *Allen* addressed Congress's power to *abrogate* the States' Eleventh Amendment immunity in a suit against North Carolina; it speaks to no waiver by the United States. For the DTSA it offers *MedSense, LLC v. University System of Maryland*, 420 F. Supp. 3d 382, 392 (D. Md. 2019) (the same States'-immunity question, as to Maryland), and *Fast Enterprises, LLC v. Pollack*, No. 16-cv-12149-ADB, 2018 U.S. Dist. LEXIS 161518 (D. Mass. Sept. 21, 2018) (not an immunity decision at all; it construes the DTSA's private-right-of-action limitation, 18 U.S.C. § 1833(a)(1)). Mem. at 13–14. Whether Congress has abrogated the States' constitutional immunity is a different question, under a different doctrine, from whether the United States has waived its own.

B. The Claims Actually Asserted Against the Federal Defendants Are Untouched by the Walk, as the Motion's Own Authorities Hold

31. What the Third Amended Complaint asserts against the Federal Defendants are the constitutional and conspiracy counts (Counts I–V), the declaratory count (Count XI, including the FRE 901/607 and ultra vires controversies), and the equitable relief in the Prayer (TAC § XI.A ¶¶ 337–349; § XI.B ¶ 350). Sovereign immunity reaches none of them, three times over.

32. First, the non-monetary claims proceed under an express statutory waiver. The second sentence of 5 U.S.C. § 702 provides that an action "seeking relief other than money damages" against an agency or officer "shall not be dismissed . . . on the ground that it is against the United States." The motion's own authorities state the rule. *Trudeau v. FTC* holds that § 702's waiver "is not limited to APA cases," applies "regardless of whether the elements of an APA

cause of action are satisfied," and reaches "nonstatutory and First Amendment actions as well." 456 F.3d 178, 186–87 (D.C. Cir. 2006). *Trudeau* itself *reversed* a Rule 12(b)(1) dismissal, the very disposition the motion requests here. *Id.* at 187. And *Clark*, the case the motion cites for the impossibility of finding a waiver, holds that the 1976 amendments to § 702 "eliminated the sovereign immunity defense in virtually all actions for non-monetary relief" against federal agencies and officers, and that "sovereign immunity presents no obstacle" to equitable claims of precisely this kind. 750 F.2d at 102. The two decisions the motion tenders for the bar are the two decisions establishing the waiver.

33. Second, the ultra vires officer-suit doctrine independently suffices. Where an officer acts beyond his authority, "his actions are . . . individual and not sovereign actions" and "may be made the object of specific relief." *Larson*, 337 U.S. at 689; *see Clark*, 750 F.2d at 102–04 (applying the *Larson* exceptions; they support "specific relief only, and not . . . monetary damages"). The pleaded conduct sits at the doctrine's core: a "credible evidence" adjudication that pronounced a credibility verdict the Constitution reserves to the fact-finder (TAC ¶¶ 16, 186; Count XI), and regulatory authority deployed against protected speech "exceeding statutory authority under 47 U.S.C. § 326" (TAC ¶ 187). Plaintiff conforms his claims to the doctrine's own limit: the *Larson*/§ 702 routes carry the *equitable and declaratory* claims; damages from individual officials are sought only in their individual capacities, through the counts and doctrines addressed in §§ VI–VIII, *infra*.

34. Third, the §§ 1981/1983/1985/1986 point answers a question not presented. *Jean-Baptiste v. Department of Justice*, No. 23-0432, 2024 U.S. Dist. LEXIS 51959 (D.D.C. Mar. 25, 2024), holds those statutes contain no waiver of the United States' immunity, Mem. at 14–15; but Plaintiff seeks no §§ 1981–1986 damages *from the United States*. As against the Federal

Defendants, Counts I–V proceed (i) in the officials' individual capacities (where § 1985(3) by its terms reaches conspiracies without regard to the conspirators' federal office) and (ii) for declaratory and injunctive relief through the § 702 and *Larson* routes above. The constitutional-tort damages question the motion raises is its Bivens question, answered at § VI.

35. The FTCA argument has no object. As the motion's n.3 recognizes, Counts XVI and XVII are pled against corporate Defendants only. Plaintiff asserts no FTCA claim; the exhaustion and proper-party arguments (Mem. at 15–16) apply to a claim that does not exist.

36. A final word on the caption. Defendant Bondi moves "in her official capacity as *former* Attorney General." Mem. at 1. There is no such capacity: an official-capacity claim runs against the office and follows its occupant automatically, Fed. R. Civ. P. 25(d), and counsel disclaims representing Ms. Bondi individually, Mem. at 1 n.1. The Court should treat the official-capacity claims as running against the incumbent Attorney General; the individual-capacity claims against Ms. Bondi remain unrepresented and unmoved-for, n.4's *sua sponte* invitation notwithstanding.

37. In sum: the statutory walk resolves claims not asserted against these Defendants; the claims that are asserted (constitutional, conspiracy, declaratory, injunctive) proceed under their own authorities' waiver and exceptions. The sovereign-immunity section of the motion, like its standing section, never engages what the operative pleading actually claims.

IV. THE SERVICE ARGUMENT IS BRIEFED AGAINST A RECORD ONE FILING BEHIND

38. The motion's service section briefs against a record one filing behind. It announces that Defendants "will not regurgitate" the Notice of Non-Service (ECF No. 67), Mem. at 8, then re-files the Notice's argument while never engaging ECF No. 68, Plaintiff's point-by-point reply (three declarations and proofs of service), which Plaintiff incorporates by reference rather than re-briefs. ECF No. 68 ¶¶ 9–13, 27–34 & at 23–24 (Rule 4(i)(2)'s operative verb for the officer

copies is "send," not "deliver"; Rule 4(i)(4)(A) makes cure *mandatory* where, as here, the United States has been served, *id.* ¶ 28; the authorized-recipient objection is answered completely by the pending request for court-ordered service under Rule 4(c)(3), with the Marshals' fees tendered). The motion never cites Rule 4(c)(3), 28 U.S.C. § 566(c), or 18 U.S.C. § 3056, the three authorities on which the pending request rests, leaving unanswered the question the record has now asked twice: whether the Court should order Marshals service for defendants no private process server may lawfully approach. 18 U.S.C. § 3056; ECF No. 62 ¶ 18. Silence against that record is forfeiture. And the motion's own lead case forecloses its proposed disposition: *Morrissey v. Mayorkas*, 17 F.4th 1150 (D.C. Cir. 2021), affirmed a dismissal *without* prejudice and the motion quotes it in terms intelligible only of one, Mem. at 6, yet the proposed order requests prejudice (§ X, *infra*). The proportionate course under Rules 4(m) and 4(i)(4)(A) is the one ECF No. 68 requested: deem service complete; alternatively, order Rule 4(c)(3) service at Plaintiff's expense; alternatively, extend time.

V. THE RULE 8 ARGUMENT IS REFUTED BY THE MOTION THAT MAKES IT

39. Rule 8 asks whether the pleading gives "fair notice of what claim is being asserted, on what legal theory, and based on what alleged conduct." Mem. at 9–10 (citing *Sparrow v. United Air Lines, Inc.*, 216 F.3d 1111, 1118 (D.C. Cir. 2000)). The motion's further formulation, that dismissal is proper where a pleading is "so vague, confusing, or indeterminate" that no claim can be determined, Mem. at 10 (citing *Ciralsky v. CIA*, 355 F.3d 661, 670 n.9 (D.C. Cir. 2004)), is not *Ciralsky's* language. The phrase appears nowhere in that opinion; it is the motion's own paraphrase. What *Ciralsky's* footnote actually quotes is a standard with a procedural predicate absent here: a complaint may be struck where it is vague or ambiguous "and the judge has already issued an order for a more definite statement which order was not complied with,"

McHenry v. Renne, 84 F.3d 1172, 1177 (9th Cir. 1996), *quoted in Ciralsky*, 355 F.3d at 670 n.9 (no more-definite-statement order has ever issued in this case); and a standard reserved for complaints whose "true substance, if any, is well disguised," *Simmons v. Abruzzo*, 49 F.3d 83, 86 (2d Cir. 1995), *quoted in Ciralsky*, 355 F.3d at 670 n.9, a description refuted by the motion's own count-by-count walk, which located the substance without difficulty. The standard is fair notice, and the motion's own pages answer it.

40. The internal tension. The same brief that calls the Third Amended Complaint an indecipherable "screed," Mem. at 8, walks Counts VI through XVIII paragraph by paragraph, identifying, count by count, which defendants each count names and which paragraphs carry each claim. Mem. at 13–15 & nn.2–3. That walk is the most granular defendant-by-defendant engagement any party has offered in this case, and it is fatal to the section it follows: a pleading whose counts can be inventoried by opposing counsel, accurately, in the space of two pages, is a pleading that gave fair notice. Both characterizations cannot be true, and the motion supplies the evidence for the second.

41. Sharper still, the government's own brief states the claim it says cannot be stated. The motion's Background recites the gravamen of the case accurately and in Plaintiff's own words: "For forty-three days, government officials deployed a fraudulent legal standard — 'credible evidence' — that no federal rule of evidence contains." Mem. at 2 (quoting 3d Am. Compl. ¶ 16). A party that can restate a complaint's central theory this precisely, at the threshold of its own brief, has received the fair notice Rule 8 exists to secure. The motion then concedes the point outright: it represents that "this Court can resolve his claims against the federal Defendants on jurisdictional grounds alone, without needing to painstakingly sift through his filings." Mem. at 3. That concession is incompatible with the ground it accompanies. Sovereign immunity and

standing are adjudicated claim by claim, against the claims a pleading actually states; a complaint "so vague, confusing, or indeterminate" that no claim could be discerned could not be resolved "on jurisdictional grounds alone," for there would be no claim to which a threshold defense could attach. A movant cannot understand the claims well enough to move against them on threshold grounds and simultaneously maintain that it cannot understand them at all.

42. And the length the motion decries is a function of the conduct this suit challenges, not a defect in the pleading of it. The concealment at the center of the case operated across telemetry channels that are certificate-pinned and not user-inspectable, and it yielded to documentation only through forensic instrumentation; the resulting detail is the measure of what it took to see conduct engineered not to be seen. Nor is the record large for what it covers: it spans the many Defendants and twenty Doe co-conspirators the Complaint names, and the conduct charged against roughly half of them sounds in emergent technology the movants' own filings decline to engage; against that scope, the pleading is proportionate, not prolix. The governing theory compounds the point: a claim of coordinated conduct is proved through the *pattern* of parallel acts, and a pattern is pleaded instance by instance, so the documented recurrence of an identical Federal Rules of Evidence conflation across multiple federal actors, sustained until it ceased within days of the complaint that identified it, is what the claim requires, not excess baggage upon it. *See* App. O; Memo C; *Interstate Circuit, Inc. v. United States*, 306 U.S. 208, 226–27 (1939) (the established-pattern authority the pleading invokes, TAC ¶ 123(a)). That complexity cannot be built into the conduct and then charged against the pleading that documents it. Rule 8 requires fair notice, not brevity; a pleading that is at once specific and independently verifiable is the antithesis of the "unintelligible" "screed" the motion invokes. Mem. at 8, 13.

43. The volume objection proposes no measure, because none exists. Rule 8 supplies no page count at which pattern evidence becomes too much, and the motion offers none: it does not say which of the forty-three documented days of the identical evidentiary conflation the pleading should have omitted, or which of the confirmed source-code findings, because any such line would be arbitrary, and every omitted instance would reappear in the movants' briefing as a gap in the very pattern the claims require. The drafting choices available to Plaintiff invite the same motion either way: plead the instances and be charged with volume, or plead the conclusions without them and be charged with resting on bare allegations, the very attack the companion motion makes on this record while declining to open the exhibits that corroborate it. Where no objective measure exists, the workable measure is Rule 8's own, notice: whether the material is reasonably cognizable to the party objecting to it. And this record is composed, to a degree unusual in any litigation, of the Defendants' own words and records: the officials' own public statements across the forty-three days (official publications presumptively authentic under Federal Rule of Evidence 902(5), and party admissions under Rule 801(d)(2); 3d Am. Compl. ¶¶ 49, 56), their own filings with the Internal Revenue Service, their personnel's publicly documented employment histories, their own published safety commitments, and Defendant Anthropic's own source code, corroborated by the repository Anthropic itself released and acknowledged. Exs. A-1–A-6, B-1–B-2, B-6–B-16, C; ECF No. 57-1. A party does not need a shorter pleading to understand its own documents. The length of a pleading measures the number of times the Defendants acted, and a movant cannot generate the instances and then plead incomprehension of their sum.

44. The cross-motion confirmation. The corporate Defendants, five separately represented movants, filed a forty-eight-page memorandum briefing all eighteen counts on the

merits, count by count. ECF No. 70-1. A complaint that supports seventy-five pages of organized, count-specific merits briefing from two coordinated defense groups did what Rule 8 exists to ensure. And the dilemma is not hypothetical here: when Plaintiff furnished the concentrated version the volume objection professes to want (his emergency motion's two plain, independently verifiable allegations against Anthropic and Comcast, ECF Nos. 57-1, 57-2; *see* § II.F, *supra*), the allegations went unengaged all the same; so when the pleading is long the objection is its length, and when it is short the objection is silence. The two motions, read together, impose incompatible standards on the same pleading: the government calls it too much (an "unintelligible" "screed," Mem. at 8) while the corporate Defendants, briefing the identical complaint, fault its allegations as too little, "conclusory" and "uncorroborated," ECF No. 70-1 at 8, 14. A pleading cannot be at once so voluminous that no claim can be found in it and so sparse that no claim is supported by it. And the movants' own *pro se* standards authority forecloses the second horn: a *pro se* complaint is "to be liberally construed" and "held to less stringent standards than formal pleadings drafted by lawyers," and may not be dismissed on the ground that its "allegations of harm were too conclusory." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007) (per curiam) (cited at Mem. at 4). A standard that no pleading could satisfy, least of all a *pro se* plaintiff's, is not the standard Rule 8 sets.

45. The prior dismissals are other records on other pleadings, and preclude nothing.

The motion imports the Minnesota and Florida dismissals as character evidence, Mem. at 10, while conceding through its own authority that this Court lacks jurisdiction to review other districts' orders. *Klayman v. Rao*, 49 F.4th 550, 552–53 (D.C. Cir. 2022) ("A federal district court lacks jurisdiction to review decisions of other federal courts." (quoting *Smalls v. United States*, 471 F.3d 186, 192 (D.C. Cir. 2006))). What those records actually show is narrower than the

motion's use of them. A Rule 8(a)(2) dismissal adjudicates the form of a pleading, not the merits of any claim; it is presumptively without prejudice, and dismissal with prejudice on Rule 8 grounds is a sanction reserved for a plaintiff who "has persisted in violating Rule 8" *after* a court has spoken. *Michaelis v. Nebraska State Bar Ass'n*, 717 F.2d 437, 438–39 (8th Cir. 1983); *see* Fed. R. Civ. P. 41(b) (excepting jurisdictional dismissals from merits effect); *Semtek International Inc. v. Lockheed Martin Corp.*, 531 U.S. 497, 505–06 (2001). The Minnesota dismissal was a Rule 8(a)(2) form dismissal of a *different, superseded pleading* in a *different court*, reviewed on appeal only by a summary affirmance without opinion; its passing observation that Plaintiff "obviously lacks standing" as to most of the relief requested was a preamble remark, not a ground, and if treated as a ground it would be jurisdictional, which Rule 41(b) excepts from merits effect. *Kirchner v. Ellison*, No. 0:26-cv-00726 (D. Minn. Mar. 30, 2026), Mem. Op. at 2 (ECF No. 29). On either reading, no claim was adjudicated; the Florida dismissal was likewise a pleading-form disposition of a different complaint. Neither adjudicated any claim now before this Court; neither pleading is the operative Third Amended Complaint; and no court has ever identified a Rule 8 defect in *this* pleading and seen Plaintiff persist in it. The full procedural record, including the Eighth Circuit's affirmance and the August 20, 2026 dismissal of the narrowed Minnesota refiling, itself jurisdictional and without preclusive effect, is before the Court by supplemental notice. Pl.'s Suppl. Notice of Related Cases (ECF No. 71).

46. The sanctions-flavored framing answers itself. The motion re-quotes the Minnesota court's "strained resources" remark and its sanctions warning, Mem. at 10, as though borrowed rhetoric could substitute for a Rule 8 analysis of this pleading. This Court has already screened this pleading, ordered the amendment that cured it, and set substantive Rule 12 briefing (§ 7, *supra*). Plaintiff briefed the legal theories; the government's response is before the Court. The

Rule 8 question is notice, and the record on notice (the motion's own count-walk, the corporate merits brief, this opposition) is one-directional.

47. The economy accusation issues from the party briefing in duplicate. The motion closes its Rule 8 section by asking the Court to dismiss the operative pleading "as it too, represents a meritless shotgun pleading and a drain on this Court's judicial resources." Mem. at 11. The "shotgun" and "waste [of] judicial resources" vocabulary is borrowed from the Florida dismissal quoted one page earlier, Mem. at 10; the sentence itself issues from the brief whose service section re-files the government's own prior docket entry nearly verbatim while answering none of the responses of record. *See* § IV, *supra*. If judicial economy is the measure the motion proposes, the record supplies the accounting: which party filed the same argument twice, and which party answered it once. *Compare* ECF No. 67 *with* Mem. at 8–9; *see* ECF No. 68.

48. Remedy, in the alternative. Even where Rule 8 concerns are found, the D.C. Circuit's course is dismissal of the *pleading* without prejudice and leave to replead, not dismissal of the *action* with prejudice on a first objection. *Ciralsky*, 355 F.3d at 669–71, 674 (a with-prejudice Rule 8 dismissal of a nonfrivolous complaint "would have constituted a harsh sanction," and the denial of leave to replead it entails is "generally . . . an abuse of discretion"; remanding where even a nominally *without*-prejudice dismissal proved the "functional equivalent" of one with prejudice). *Ciralsky* polices without-prejudice dismissals for their preclusive bite; the motion here asks for the with-prejudice disposition itself, on a first objection, without briefing why the lesser course would not suffice. Its own authorities supply the answer.

**VI. THE BIVENS ARGUMENT GOVERNS ONLY A FRACTION OF THE CLAIMS,
AND FAILS ON ITS OWN TERMS WHERE IT APPLIES**

A. What the Bivens Question Does and Does Not Decide

49. *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 403 U.S. 388 (1971), supplies the cause of action for one category of claim only: constitutional *damages* claims against federal officials in their *individual* capacities. The motion's Bivens discussion (Mem. at 19–25) accordingly does not touch (i) the declaratory and injunctive claims, which proceed under 5 U.S.C. § 702 and the *Larson* officer-suit doctrine, § III.B, *supra*: equitable relief needs no *Bivens*, *see Trudeau*, 456 F.3d at 186–87 (nonstatutory and constitutional claims for non-monetary relief proceed under § 702's waiver); (ii) Count V, which rests on an *express* statutory cause of action, 42 U.S.C. § 1985(3): there is nothing to imply, and the framework of *Egbert v. Boule*, 596 U.S. 482 (2022), has no office where Congress has already spoken; and (iii) every count asserted against the corporate Defendants. What remains for *Bivens* analysis is the individual-capacity constitutional-damages claims against Chairman Carr and Speaker Johnson. *Egbert's* First Amendment holding reaches damages alone. 596 U.S. at 498–99.

50. Before reaching the two-step, note what the motion has done to the claims it analyzes: it re-describes them as "best understood at [sic] challenging the federal government's failure to adequately regulate corporate defendants." Mem. at 21. The operative pleading alleges *direct* conduct: regulatory authority deployed for content-based speech suppression and ISP-level surveillance of this litigant's litigation preparation (TAC ¶ 30); external coordination and the elimination of ethics oversight during the operative window (TAC ¶¶ 27, 31, 182); and a coordinated forty-three-day deployment of a fraudulent evidentiary standard (TAC ¶¶ 16, 118, 123). A motion to dismiss takes the complaint as pleaded; the analysis that follows the "failure to regulate" framing answers a complaint Plaintiff did not file.

B. On the Motion's Own Two-Step Framework, Dismissal Is Unwarranted

51. New context. Plaintiff does not resist the observation that this case differs from *Bivens*, *Davis v. Passman*, 442 U.S. 228 (1979), and *Carlson v. Green*, 446 U.S. 14 (1980); under *Ziglar v. Abbasi*, 582 U.S. 120, 139–40 (2017), and *Hernandez v. Mesa*, 589 U.S. 93, 102 (2020), nearly everything does. The dispute is at step two, where the motion must supply "special factors"; and where each factor it offers either has no content on this record or proves the opposite of what it is offered for.

52. The alternative-remedies factor is invoked with no alternative remedy in it. The motion announces "alternative remedial safeguards available to Plaintiff" as a special factor, Mem. at 20–21 (quoting *Egbert*), and then names none: no statute, no administrative scheme, no grievance process, anywhere in its twenty-seven pages. In *Egbert* the factor had content (an existing Border Patrol grievance procedure the plaintiff had in fact invoked, 596 U.S. at 497–98); a factor defined by the *existence* of alternative remedies cannot be carried by their absence.

53. The congressional-activity factor proves too much. The motion recites bills not enacted (S. 3415, S. 3343, S. 2103, H.R. 7213) as evidence that Congress has "repeatedly considered, but failed to enact" a federal-officer damages statute. Mem. at 23–24. But in 1979 Congress had gone further (an enacted Title VII that left congressional staff expressly unprotected), and the Supreme Court implied the remedy anyway, holding that such "silence is far from 'the clearly discernible will of Congress'" to foreclose judicial remedies. *Davis*, 442 U.S. at 247 & n.26. If an enacted statute expressly leaving the class unprotected did not foreclose *Davis*, bills never enacted do not foreclose this case.

54. The "social costs" factor rests on a forecast the motion performs against itself. The argument rests entirely on a prediction: that "fear of personal monetary liability and

harassing litigation will unduly inhibit officials in the discharge of their duties." *Egbert*, 596 U.S. at 499 (quoting *Anderson v. Creighton*, 483 U.S. 635, 638 (1987)); see Mem. at 24 (invoking the passage as the motion's "substantial social costs" showing). A forecast is not a finding; and the same species of prediction, offered on the citizen's side, the Supreme Court has dismissed as "fear mongering on the basis of extreme hypotheticals." *Trump v. United States*, 603 U.S. 593, 640 (2024). No neutral principle makes a prediction decisive evidence from the movant and inadmissible speculation from the citizen; and the motion performs the asymmetry within its own pages: at page 24 it asks the Court to credit a hypothetical fear of litigation that *might* be brought; at page 17 the same brief dismisses the pleaded coordination and deployment allegations with "[w]hatever any of that means." Mem. at 17, 24; see § II.B, *supra*. This Plaintiff predicts nothing: the Complaint pleads completed acts with the particularity set out at § II.B; the only hypothetical tendered to this Court is the government's.² And the rationale is now tendered in the government's own voice: the motion adopts the passage as its own submission in this case, Mem. at 24, placing the doctrine's load-bearing premise on this record by the party invoking it. Section IX examines the credentials of what the government has chosen to quote; having invoked the rationale, the government cannot disclaim the foundation on which it rests. See § IX.A, *infra*; § IX.E ¶ 92, *infra* (the founding text from which the fear rationale claims descent contains no such ingredient).

55. The separation-of-powers factor is addressed to the wrong sections. As to Speaker Johnson, the internal-rulemaking concern is the Speech or Debate question, answered at § VII, *infra*. As to Chairman Carr, no textual commitment shields an agency chairman's alleged

² The passage the motion quotes has a lineage worth one sentence: it enters the law as a policy surmise in *Gregoire v. Biddle*, 177 F.2d 579, 581 (2d Cir. 1949), and travels by successive quotation: *Harlow v. Fitzgerald*, 457 U.S. 800, 814 (1982); *Anderson*, 483 U.S. at 638; *Egbert*, 596 U.S. at 499, each decision citing only its predecessor, none pausing to test the prediction.

surveillance of a litigant; the motion's invocation of "official conduct performed by federal officials in the course of their public duties," Mem. at 25, assumes the answer to the question the pleading puts in issue. *See* § VIII, *infra*.

56. The n.4 invitation should be declined. Counsel states twice that he does not represent President Trump, Ms. Bondi, or the Doe defendants in their individual capacities, Mem. at 1 n.1, 27, yet invites the Court to dismiss the claims against them *sua sponte*, Mem. at 19 n.4. Defenses personal to absent, unrepresented parties are not before the Court on this motion.

57. Where the *Bivens* framework applies at all, the motion fails to carry it: the alternative-remedies factor is empty on this record, the congressional-activity factor forecloses nothing, and the social-costs factor asks the Court to credit for the officials the very kind of conjecture the doctrine's own cases refuse the citizen. The claims against Chairman Carr and Speaker Johnson should proceed.

**VII. THE SPEECH OR DEBATE CLAUSE PROTECTS LEGISLATIVE ACTS, AND
THE PLEADED CONDUCT INCLUDES ACTS THE CLAUSE'S OWN CASES PLACE
OUTSIDE IT**

58. The Speech or Debate Clause is constitutional text, and Plaintiff takes it as written: for "any Speech or Debate in either House," Members "shall not be questioned in any other Place." U.S. Const. art. I, § 6, cl. 1. The question the motion presents is not whether the Clause confers absolute protection (it does) but *what it covers*. On that question the motion's own authorities draw the line that decides it.

59. The rule the motion quotes is a scope rule. Legislators are "absolutely immune only when performing 'acts legislative in nature,' and not when taking other acts even 'in their official capacity.'" Mem. at 25. The Clause's protection extends to conduct that is "an integral part of the deliberative and communicative processes by which Members participate in committee and

House proceedings." *Gravel v. United States*, 408 U.S. 606, 625 (1972). It has never been "all-encompassing," *id.*, and *United States v. Brewster* catalogues what falls outside: activities "entirely legitimate" but "political in nature rather than legislative," and therefore unprotected. 408 U.S. 501, 512 (1972); *see id.* at 515–16 (the Clause reaches only what is "clearly a part of the legislative process — the due functioning of the process").

60. Measured against that line, the pleaded conduct divides. Plaintiff does not dispute that the adoption and application of the House's internal rules of proceeding, standing alone, sit near the Clause's core; that is the holding of *McCarthy v. Pelosi*, 5 F.4th 34 (D.C. Cir. 2021), Mem. at 26, and Plaintiff does not ask the Court to question any vote, debate, or rule qua rule. But the operative pleading alleges more than rules of proceeding. It alleges that Speaker Johnson personally engaged in "admitted 'lockstep' coordination with the Executive abandoning Article I independence," TAC ¶ 27(b) (coordination with an actor *outside* the legislative branch), and that he "maintained the longest delay in the Office of Congressional Conduct's 17-year history, eliminating ethics investigations during the critical period," TAC ¶ 182; the institutional counterpart is pleaded against the House itself. TAC ¶ 31 ("admitted external coordination violating Article I independence, and elimination of ethics oversight during critical constitutional crisis"). Coordination with external, non-legislative actors is not "speech or debate in either House"; it is not deliberation, not communication in committee or on the floor, and not the "due functioning" of any legislative process. It is the *Gravel/Brewster* residue: official, perhaps; political, perhaps; legislative, no.

61. *McCarthy* confirms the distinction rather than erasing it. Legislative acts, as that decision defines them, are those "generally done in a session of the House by one of its members in relation to the business before it," 5 F.4th at 38–39 (quoting *Kilbourn v. Thompson*, 103 U.S.

168, 204 (1880)); and the conduct there was a proxy-voting rule for the House's own proceedings. And the holding runs opposite to the motion's use of it: *McCarthy* protected a Resolution that *enabled* Members to "cast votes," on the reasoning that "the 'act of voting' is necessarily a legislative act." 5 F.4th at 38. The motion enlists that reasoning to shield the inverse conduct: the Speaker's alleged *prevention* of a Committee vote a supermajority would have carried, TAC ¶ 31, in service of coordination with actors outside the House rather than any legislative end. App. A ¶¶ 27, 116–17. A decision holding voting quintessentially legislative *because* it is how Members accomplish "the . . . passage or rejection of proposed legislation," *Gravel*, 408 U.S. at 625, does not by its own logic protect the suppression of that process; and the authority to "determine the Rules of its Proceedings," U.S. Const. art. I, § 5, cl. 2, is the power to make the chamber's rules, not a license to withhold the record vote those rules guarantee "upon the request of any member," App. A ¶ 24. Nothing in that holding stretches the Clause to coordination with executive-branch or private actors concerning a citizen's litigation.

62. Nor can the classification question be resolved against the pleading at this stage. The motion's method is to re-describe every allegation at the highest level of generality ("legitimate legislative acts," Mem. at 26) and then invoke the Clause against its own description. The motion's only textual support is self-defeating: for its assertion that the conduct is "plainly" legislative it points to nothing but the complaint's *venue* paragraph ("Government Defendants . . . perform official duties within this judicial district," TAC ¶ 12(a), quoted at Mem. at 25 with two of the four named Defendants dropped behind an empty bracket), an allegation of *official* action, the category the Clause's own cases place *outside* its protection. But where the complaint alleges specific non-legislative conduct, the threshold act-classification is decided on the allegations, taken as true, not on the movant's re-characterization. *See* § II.A, *supra* (the facial posture); *cf.*

Gravel, 408 U.S. at 625 (protection turns on the *nature* of the act). If the Speaker's conduct was confined to votes, debates, and rules, the record will show it; the pleading alleges otherwise, and at Rule 12 the pleading controls.

63. The Clause, in short, is honored, not offended, by reading it to mean what it says, and the dispute is narrower still than the motion supposes. The declaratory relief the operative pleading seeks against the government Defendants (foremost the declaration that Federal Rules of Evidence 901 and 607 commit authentication and credibility to the constitutional factfinder and may not be displaced by an extra-judicial "credible evidence" framework, TAC ¶ 339) construes the Rules of Evidence and the constitutional structure; it questions no speech or debate. And the Speaker's prevention of the Committee vote enters this case as *evidence* of the coordination Count V pleads, an inference that rests independently on the simultaneous cross-branch abandonment of the fraudulent evidentiary standard within twenty-four hours of Plaintiff's August 19 filing. TAC ¶¶ 118, 123. Were the Clause read to reach the vote itself, neither the declaratory relief Plaintiff seeks nor the coordination that vote helps evidence would fall with it.

VIII. QUALIFIED IMMUNITY DOES NOT SHIELD CHAIRMAN CARR ON THESE PLEADINGS

A. The Motion Asks the Court to Resolve Fact Questions the Pleading Stage Cannot Reach

64. Qualified immunity is an affirmative defense. At Rule 12 it prevails only if the *complaint's own allegations*, taken as true, establish it, not if the movant's re-characterization of those allegations would; the same re-describe-then-reason-from-the-label method addressed at ¶¶ 50 and 62, *supra*. What the operative pleading alleges is that Chairman Carr "deployed FCC regulatory authority for political speech suppression and coordinated with telecommunications infrastructure to enable ISP-level surveillance of Plaintiff's constitutional litigation preparation

through TR-069 remote access capabilities." TAC ¶ 30; *accord* Mem. at 27 (quoting it).

Whether that conduct occurred, whether it was within any duty of the FCC chairmanship, and what its object was, are questions of fact; the classification the defense requires cannot be decided against the pleading by relabeling it. *Cf. Harlow v. Fitzgerald*, 457 U.S. 800, 816 (1982) (acknowledging the fact-bound character of such questions: the very difficulty the objective test was built to manage, not a license to resolve disputed conduct on the pleadings).

65. The personal-participation requirement the motion invokes, Mem. at 26–27 (citing *Ashcroft v. Iqbal*, 556 U.S. 662, 676 (2009)), is satisfied on the face of the pleading: TAC ¶ 30 alleges Chairman Carr's *own* deployment of authority and *own* coordination, not respondeat superior, not agency drift. On the motion's facial posture, *see* § II.A, *supra*, those allegations control.

B. Prong One: The Pleading Alleges Constitutional Violations

66. First Amendment. "[T]he law is settled that as a general matter the First Amendment prohibits government officials from subjecting an individual to retaliatory actions" for protected speech and petitioning. *Hartman v. Moore*, 547 U.S. 250, 256 (2006), an authority the motion itself carries. Mem. at 18. The pleaded conduct (regulatory authority deployed for "political speech suppression" against a litigant's constitutional petitioning) is that violation as pleaded. (The *right* is *Hartman's* settled law; the damages *remedy* against federal officials is the *Bivens* question answered at § VI, *supra*; the two are distinct, and the motion's authorities keep them so.)

67. Fourth Amendment. Warrantless, targeted surveillance of a citizen's litigation preparation through remote access to his service infrastructure, as pleaded, without process of any kind, states the violation; its remedial vehicle is likewise addressed at §§ III and VI.

C. Prong Two: No Reasonable FCC Chairman Could Believe This Conduct Lawful

68. Qualified immunity protects "all but the plainly incompetent or those who knowingly violate the law." Mem. at 26 (quoting *District of Columbia v. Wesby*, 138 S. Ct. 577, 589 (2018)). The pleaded conduct is not a reasonable officer's mistake at a doctrinal boundary: a search incident to a disputed arrest, a split-second use of force. It is the deliberate use of regulatory office to surveil and suppress an adversary's court petitioning: conduct whose unlawfulness does not depend on fine-grained precedent because no body of law has ever permitted it, and whose factual character (deliberate targeting, keyed to this litigant) is pleaded with the specificity set out at § II.B, *supra*. Where the violation as alleged is knowing and targeted, the "clearly established" inquiry is satisfied on the allegations; whether the conduct actually happened is for the record, not the pleading stage.

69. **The conduct is outside the office, not immunized by it.** Surveillance of a litigant's trial preparation is not among the FCC chairmanship's functions; no organic statute, and certainly not 47 U.S.C. § 326 (a provision that *prohibits* censorship) assigns it. The motion's answer is Exhibit N's dismissal as "27-pages of extraneous, irrelevant information," Mem. at 27, a characterization of an exhibit the motion gives no indication of having read, and that cites the exhibit to a docket entry that does not exist: the motion locates Exhibit N at "ECF No. 54-24," Mem. at 27, but ECF No. 54 is Plaintiff's Notice of Related Case and carries no attachments; the exhibit is ECF No. 51-24, as the motion's own page 10 correctly cites. *See* § II ¶ 12, *supra*. An unread record cannot be an irrelevant one; on a facial challenge its allegations stand.

D. The Doctrine the Motion Invokes Keeps a Promise the Motion Omits

70. The motion invokes *Harlow* for its protective rationale, Mem. at 26 (citing 457 U.S. at 814–19), and quotes the fear passage as the reason immunity must be generous. Mem. at 24.

But *Harlow* speaks twice, and the motion tenders only half. The same opinion promises, in terms:

"By defining the limits of qualified immunity essentially in objective terms, we provide no license to lawless conduct. . . . Where an official could be expected to know that certain conduct would violate statutory or constitutional rights, he should be made to hesitate; and a person who suffers injury caused by such conduct may have a cause of action."

Harlow, 457 U.S. at 819. That is the doctrine's own account of itself, and it decides this motion: taken as pleaded, this is the conduct *Harlow* says its test does not license, committed by an official *Harlow* says should have hesitated, injuring a person *Harlow* says may sue.

71. The immunity tradition has always been candid about the price: its classic justification concedes that immunity's breadth means "leav[ing] unredressed the wrongs done by dishonest officers." *Gregoire v. Biddle*, 177 F.2d 579, 581 (2d Cir. 1949) (L. Hand, J.), quoted in *Imbler v. Pachtman*, 424 U.S. 409, 428 (1976). That balance is struck for duties discharged at the uncertain edges of the law, never for what is pleaded here; as to such conduct, *Harlow*'s promise is the operative text. The Court need not choose between the doctrine's two voices to deny this motion; it need only hold the movant to both.

72. The individual-officer rationale cannot reach coordinated conduct in any event.

Whatever the fear-of-suit prediction could justify for a lone officer's discretionary judgment, it does not describe, and has never been extended to, the concerted, cross-institutional conduct this Complaint pleads. TAC ¶¶ 30, 123. See § VI ¶ 54, *supra* (the asymmetry). Qualified immunity, if it protects anything here, protects an individual's reasonable mistakes; it does not convert a pleaded conspiracy into a class of the unsuable.

73. On the allegations, both prongs are satisfied, the defense's factual predicates are disputed, and the pleading-stage grant the motion requests would resolve against Plaintiff

precisely the questions the operative pleading puts to the fact-finder. The motion should be denied as to Chairman Carr; at minimum, the immunity question awaits a record.

**IX. THE IMMUNITY DOCTRINE THE GOVERNMENT INVOKES FAILS AT ITS
MODERN APEX AND AT ITS FOUNDATION**

**A. At Its Modern Apex, the Doctrine Supplies No Objective Standard for the President and No
Pleading-Stage Rule**

74. Before tracing the lineage to its foundation, Plaintiff addresses its modern apex, *Trump v. United States*, 603 U.S. 593 (2024), whose subject this Court raised at the May 28, 2026 status hearing. Tr. at 11. The Government does not invoke it; its position is that Defendant Trump has not been served, a position answered at § IV, *supra*; Plaintiff's reply named it in terms before this motion was filed. ECF No. 68 at 21. Plaintiff addresses *Trump* as candor to that colloquy, and because it is the modern apex of the very immunity lineage the Government does invoke through *Harlow*. The colloquy itself evidences the deeper point: in what capacity, and for what acts, a President may be sued admits of no categorical answer; the circumstances decide. Examined on its own terms, *Trump* forecloses rather than supports any pleading-stage immunity bar, for two reasons.

75. First, *Harlow*'s standard cannot be applied to the President, because the measuring rod it uses does not exist for that office. Qualified immunity shields an official whose conduct does not violate "clearly established statutory or constitutional rights of which a reasonable person would have known," *Harlow*, 457 U.S. at 818, limits the Court defined "essentially in objective terms," *id.* at 819; objectivity admits no degrees. Article II charges him to "take Care that the Laws be faithfully executed," U.S. Const. art. II, § 3, and places the whole Department of Justice and Cabinet at his command to do it. An officer who bears the constitutional duty to know and faithfully execute the law, with the entire apparatus of federal legal advice at his

disposal, cannot at the same time claim the benefit of a standard built to excuse the reasonable official who did *not* know a right was clearly established. The Take Care Clause, offered to justify presidential immunity, thus cuts the other way: it commands knowledge and faithful execution of the law, not a license to be unaware of it. There is no "reasonable President who did not know the law" against whom the conduct could be measured, which is why *Trump*, though it invoked *Harlow* and *Nixon v. Fitzgerald* as general support for the existence of presidential immunity, never applied *Harlow's* "clearly established"/objective-reasonableness framework to the President. It could not.

76. Second, what *Trump* requires in its place is not an objective inquiry but a fact-bound *classification* of the challenged conduct: core constitutional acts (absolute, "conclusive and preclusive" immunity), other official acts (presumptive immunity the Government bears the burden to rebut), and unofficial acts (none), a classification that turns on "the content, form, and context" of the conduct and that the Court did not itself perform, remanding it "to assess in the first instance." *Trump*, 603 U.S. at 608–09, 624, 629. Two things follow at this stage. As to forum and timing, *Trump* supplies no instruction at all: it does not require the classification on the pleadings, confine it to the bench, or foreclose a jury: it says nothing. The only stage-instruction the lineage contains is *Harlow's* own, and it neither reaches Rule 12 nor reaches the President. *Harlow* locates the immunity determination at summary judgment: "On summary judgment, the judge appropriately may determine, not only the currently applicable law, but whether that law was clearly established," 457 U.S. at 818, a posture that presupposes a developed record and lies a stage beyond the Rule 12 dismissal the Government seeks (the posture that likewise defeats the Carr request, § VIII, *supra*). And it cannot be transferred to the President, because *Harlow's* summary-judgment determination *is* the application of the clearly-

established standard itself, the rod the preceding paragraph shows does not exist for that office. Remove that rod and nothing remains for a judge to resolve as a matter of law, at summary judgment or at any other stage; what remains is a pure question of fact: the content and context of the act, and the capacity, motive, and coordination the Complaint pleads. The Seventh Amendment reserves such questions to the jury (§ IX.E, *infra*): the absence of an objective standard removes the very thing that ever justified taking them from it. The consequence is not dismissal but its opposite: the classification cannot be resolved against Plaintiff on the pleadings, where every inference runs in his favor; it is the jury's to resolve, not the bench's to decide against him now. Applied on its own merits, current precedent leaves these claims standing. The lineage's *foundation*, examined in the sections that follow, is offered for a separate and independent purpose: the Court is free also to examine the foundation on which that modern precedent ultimately rests.

77. This Circuit has already applied that fact-bound inquiry to the President himself, at the pleading stage, and denied immunity. *Blassingame v. Trump*, 87 F.4th 1, 4 (D.C. Cir. 2023) (affirming denial of dismissal "at least at this stage of the proceedings," on the allegations taken as true: a first-term President's "campaign to win re-election is not an official presidential act"). The presidential-immunity line is thus drawn, in this Circuit, on the specific conduct alleged, the same as-applied classification *Trump v. United States* later cast as the official/unofficial divide, and the antithesis of a categorical bar resolvable against a plaintiff on a motion to dismiss.³

³ *Blassingame* also measures the void left by the same-day companions, *Harlow* and *Nixon v. Fitzgerald* (both decided June 24, 1982). Taking the allegations as true, the court resolved what the pleadings allowed and routed the rest to summary judgment on a developed record, the lineage's one stage-instruction (§ 76, *supra*). No form of the word "jury" appears in the opinion; the allocation question was never raised, never decided, and under § IX.F, *infra*, forecloses nothing. The danger for a plaintiff is the default: dismissal not because any court ascertained lawful authority for it, but because no court has ever said whose question this is.

B. Defendants' Authorities Rest on a Chain That Identifies No Constitutional Source at Any Link

78. Defendants invoke *Harlow* for qualified immunity; *Egbert v. Boule*, 596 U.S. 482 (2022), and *Ziglar v. Abbasi*, 582 U.S. 120 (2017), for the *Bivens* special-factors bar; and *District of Columbia v. Wesby*, 138 S. Ct. 577 (2018), for the clearly-established standard. Those decisions do not stand on constitutional text. *Harlow* rests on common-law tradition and a policy balance; each link in the qualified-immunity line rests on a presumption about congressional intent: "[w]e cannot believe that Congress . . . would impinge on a tradition so well grounded in history and reason by covert inclusion in the general language," *Tenney v. Brandhove*, 341 U.S. 367, 376 (1951), a presumption Justice Douglas refuted from the 1871 legislative record itself, *Pierson v. Ray*, 386 U.S. 547, 559–62 (1967) (Douglas, J., dissenting) ("'every person' would mean every person, not every person except judges"). Traced backward, every node grounds itself in tradition, presumption, policy, or the prior node — never in the Constitution. The chain terminates in *Spalding v. Vilas*, 161 U.S. 483, 498 (1896), which rests on *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347 (1872), and, four years earlier, *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 535–36 (1868), each resting, at the last link, on the English common law of judicial immunity whose foundation is *Floyd v. Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (Star Chamber 1607).

79. Plaintiff therefore takes the government's authorities at their own genealogical word and examines the foundation they rest on (printed report, surviving manuscript, catalogued file, and modern reconstruction), because no decision in the lineage, from *Bradley* to *Harlow*, has ever examined it. A census of every use of the fear family across the United States Reports, and of The English Reports for *Floyd*'s citation history, identifies no constitutional or statutory foundation independent of this chain. Kirchner Decl. ¶¶ 10–12, 19.

80. The examination is not Plaintiff's burden to invite; under the lineage's own practice it is the movants' burden to survive. The official claiming an immunity "bear[s] the burden of establishing the justification for such immunity" from the historical record, and the courts administer that showing case by case, from the district court up. *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 432–38 (1993); *Burns v. Reed*, 500 U.S. 478, 484–96 (1991); *Pulliam v. Allen*, 466 U.S. 522, 528–43 (1984). Ordinarily that burden is discharged by citation, because every court presumes the chain examined what it cites. Objective proof that the foundation's record was never received by any court in the chain strips that presumption: a claimant cannot borrow four centuries of assumed regularity once the assumption is disproven at its source, and must establish the historical justification now, against the record that now exists (§ IX.C, *infra*).

C. What the Foundation's Own Record Shows

81. The antecedent origin of the immunity the Government invokes rests on a proceeding whose own record the issuing court ordered destroyed, 77 Eng. Rep. at 1307: a record, since recovered and filed herewith as Appendix 1, that is documented below, element by element, from the surviving witnesses. The manuscript readings quoted in this Part are Plaintiff's own first-hand transcription, disclosed as provisional (Kirchner Decl. ¶ 8) and filed with the folios themselves for the Court's inspection (App. 1 at 36–47).

82. In Easter Term 1607, a Welsh gentleman, Rice ap Evan Lloyd (the man the printed report's caption calls "Floyd") filed a sixty-sheet bill in the Court of Star Chamber against Richard Barker, a justice of the Great Sessions in Anglesey, and his co-defendants. The bill "was read in open Court," and a contemporaneous reporter, independent of Coke, recorded its effect. HLS MS 149, f. 81r (App. 1 at 36). What the bill alleged, per that account and the modern reconstruction: Hugh ap Williams drowned, with his horse, in 1600 — an accident.

Roughly five years later, Justice Barker "procured" an ally to be made sheriff of the county, and a murder prosecution was constructed against William ap Rice. The procurement allegation is corroborated at the primary source: John Lewes was appointed Sheriff of Anglesey on 2 February 1606, out of cycle in a series otherwise made each November–December. *List of Sheriffs for England and Wales*, P.R.O. Lists & Indexes No. IX (1898) (Anglesey). The Crown's examinations were taken from witnesses "not capable of the English Tongue," who testified in Welsh; but the depositions were "written in English **contrary to their sayings in welsh**." HLS MS 149, f. 81v (App. 1 at 37) (emphasis added). At trial, "[t]he witnesses at the barre denied their examinacons sett downe in Engl[ish] and affirmed they made noe such deposicons." *Id.* A first accused, Edward ap John, denied the examinations and the murder, and "[a] large summe of money was offered" to him "to accuse William ap Rice of the Murder." *Id.* The grand jury was substantially "of kynne to" the prosecutor, and one grand juror was afterward "fyned by the Councell of the Marches for a false verdict." *Id.* An alibi witness placed ap Rice "12 myles distant from the place." *Id.* f. 82r (App. 1 at 38). The trial jury "desired to heare the examinacons of those whoe did first fynde the Murdred man and his horse" (the drowning evidence) "but Justice Barker would not permit it." *Id.* The jury "asked forgivenes of William Aprice for the verdict." *Id.* He "notwithstanding was condemned and executed." *Id.* The defense's own recital in the same report speaks of "[t]he plts Brother . . . lately executed for Murder"; and the surviving file resolves this into two executed men of the plaintiff's family: his brother John ap Evan Lloyd and his kinsman William ap Rees. *Id.* f. 82v (App. 1 at 39); STAC 8/203/38. *Accord* K.J. Kesselring, *Conspiracy, Crime, and Conflict in the Court of Star Chamber*, 43 Law & Hist. Rev. 693, 705 (2025) ("Hugh ap William had drowned entirely by accident in 1600"; "money and kinship procured a biased jury; Price went to his death unjustly").

83. That is the case in which judicial immunity was announced. Coke's printed report holds that "the law will not admit any proof against this vehement and voilent [sic] presumption of law, that a justice sworn to do justice" does justice, and that records "import verity in themselves, and none shall be received to aver any thing against the record itself." 77 Eng. Rep. 1305–06. And in the same proceeding, the court ordered the brother's bill, the sixty-sheet document containing the contrary proof, "taken off the file and cancelled, and utterly defaced," "without any answer to it" from Justice Barker. *Id.* at 1307. The court did not find the record regular; it destroyed the rebuttal. Then it punished the complainant: Floyd was "fyned 100li & false clamore," ordered "to remayne close prisoner vntill hee shall have confessed his abettors," with the pillory if he could not pay, and the Attorney General directed to prosecute him *and* whoever had helped him. HLS MS 149, f. 83r; *accord* Kesselring at 705 (Floyd "fined £100 for false clamor, pilloried, and imprisoned"). The court's stated reason survives in the manuscript: "if this might bee suffered ye ground of all Justice would bee overthrowne." HLS MS 149, f. 83r. And the same order erected a gate against the next such complainant: "noe bill in this Co[u]rt to exceede 15 sheets," and none received without "a Readers hand" (a barrister's signature). *Id.* In the manuscript, the word "Readers" is underlined in ink of the same class as the text; the emphasis on the counsel gate is the record's own. *Id.* The foundation of the immunity lineage is therefore not a neutral rule of ancient pedigree; it is the proceeding just documented: an irrebuttable presumption of official regularity maintained by the destruction of the proof against it.

84. The destruction failed: the bill's contents survive in the Harvard manuscript, The National Archives' own catalogue records the surviving follow-on file with the notation "Bill wanting" (TNA, STAC 8/203/38, *Lloyde v Lewys*, Anglesey, June 1607) (App. 1 at 12), and the peer-reviewed reconstruction synthesizes both, Kesselring, 43 Law & Hist. Rev. at 705 & n.47,

whose author cautions against "treating Coke as a neutral reporter of fact rather than acknowledging him as a participant in a jurisdictional struggle." *Id.* at 707 n.52. The founding precedent's reporter was its advocate.

85. The recovery no longer rests on the surviving reports and the peer-reviewed reconstruction alone. Plaintiff commissioned, and has now received, the first professional transcription of the primary record itself (STAC 8/203/38; App. 1 at 13–35), made from the parchment held at The National Archives and collated by the retained archivist against the originals at Kew, as sworn of record. Decl. of Joseph Kirchner ¶¶ 14–18; Decl. of Christopher Whittick (ECF No. 72-1). And Sir John Baker's edition of Coke's own notebook reports carries the destruction order in the notebook text: "serra prise del fyle et cancell et ousterment deface" (be taken off the file, cancelled, and utterly defaced), a witness independent of the posthumous 1656 print. Sir John Baker ed., *Reports from the Notebooks of Edward Coke*, vol. VII, 142 Selden Soc. 1655–58 (2025) (App. 1 at 48–55). The record is now established in full.

86. The acquisition, custody, and verifiability of the record copies are of record and are not re-briefed here. The copies are the custodian's own delivery, authenticated through three ordinary channels of the Federal Rules of Evidence (Fed. R. Evid. 901(b)(7), 901(b)(8), 803(16)); Plaintiff has licensed electronic publication from The National Archives and published the full-resolution images with their fixity manifest, with an open invitation to the Court and any party to commission an independent transcription of the originals. That showing is set out in Plaintiff's Opposition to the Corporate Defendants' Motion § IV ¶ 22 and the Kirchner Declaration ¶¶ 4–9, 14, 24, and is incorporated by reference. What bears stating here is the estoppel: the custodian needs no introduction to this lineage, for it is the same archive whose catalogue has carried the surviving file of the founding case all along (STAC 8/203/38, "Bill

wanting"), the source the lineage's own report descends from, and the movants vouched for that source when they tendered its case as authority (§ IX.F, *infra*).

D. The American Import Was Never Examined, and Deleted the Root's Own Accountability Forum

87. *Floyd* itself did not hold officials unaccountable. It channeled the accounting: a judge "shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself"; "there is great reason that the King himself shall take account of it, and no other." 77 Eng. Rep. 1307. And the report records that forum *working*: the corruption of Chief Justice Weyland and Justice Hengham was "determined in Parliament, where some were banished, and some were fined and imprisoned." *Id.* at 1307–08. The rule presupposed a live enforcement power above the immunized official.

88. The clause did not survive the Atlantic crossing intact, and the American record itself says so. Chancellor Kent's opinion in *Yates v. Lansing*, 5 Johns. 282 (N.Y. Sup. Ct. 1810), the decision that gave the federal line the doctrine's "deep root in the common law," *id.* at 291, stated *Floyd*'s resolution in absolute form (no judge "was to be questioned for it, either at the suit of the party, or of the king"), demoting the king-exception to an appended observation and omitting the predicate Coke attached to the rule itself: corruption "which extends to the annihilating of a record," *Floyd*, 77 Eng. Rep. at 1307. *See* 5 Johns. at 293. In the Court of Errors the following year, the objection was made on the record: "The language of that decision is not fully stated by the Chief Justice," followed by the full restoration, king-clause included: judges "not to be drawn into question for any supposed corruption which extends to the annihilating of a record of any judicial proceeding before them," "except it be before the king himself." *Yates v. Lansing*, 9 Johns. 395, 410 (N.Y. 1811) (argument of counsel). And Senator Clinton, dissenting in the same cause, performed the separation analysis from the bench: English judges answer "to the king . . .

as their principal and constituent. But this can never be applicable here." *Id.* at 432 (Clinton, Sen.). No decision in the federal chain has ever cited 9 Johns.: the American adoption record (the objection, the restoration, and the dissent) was never received. *Randall* received the court below, and passed the file by. Two dissents thus bracket the chain, two centuries apart. In 2024, at the lineage's modern apex (§ IX.A, *supra*), Justice Sotomayor arrived at Clinton's endpoint from the other direction: "In every use of official power, the President is now a king above the law." *Trump*, 603 U.S. at 685 (Sotomayor, J., dissenting). And she wrote as Clinton wrote, and as every majority in the chain wrote: without the file. The majorities assumed the inheritance's validity; the dissents, its infirmity; no member of any court in the chain's history possessed the record that could ground either. The law preserves dissents so that incomplete records can be completed at a future day. The record is now complete for fact-finding, and a record provided takes no side: it is before this Court so that what every prior court could only assume may, for the first time, be adjudicated.

89. Nor is the non-receipt an incident peculiar to this doctrine; it is the uniform condition of the reception, and it is measurable. American courts have scrutinized the *fitness* of received English rules continuously since the founding era: "our ancestors brought with them and adopted, only that portion which was applicable to their situation," *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829) (Story, J.); *accord Wheaton v. Peters*, 33 U.S. (8 Pet.) 591 (1834); *Funk v. United States*, 290 U.S. 371, 383 (1933) (the received common law "is not immutable but flexible"); *Rogers v. Tennessee*, 532 U.S. 451 (2001); *New York State Rifle & Pistol Ass'n v. Bruen*, 597 U.S. 1 (2022). The *transmission* of English rules (whether the text received is the text England held) has been audited exactly twice in American history. The first audit was *Vidal v. Girard's Executors*, 43 U.S. (2 How.) 127 (1844): the British Record Commissioners

published the early Chancery proceedings, "some fifty of these cases, extracted from the printed calendars," were laid before the Court, and the historical premise beneath *Trustees of the Philadelphia Baptist Ass'n v. Hart's Executors*, 17 U.S. (4 Wheat.) 1 (1819), fell: "those doubts are entirely removed by the late and more satisfactory sources of information." *Vidal*, 43 U.S. at 196. The second audit is the record now before this Court. Both audits found the received text false; the instruments of the reception were never records even in England (the plea rolls were the record; the printed reports, unofficial accounts, Kirchner Decl. ¶ 9). A reception whose transmission has failed every examination it has ever received is not a pedigree; it is an assumption, examinable for the first time on this record.

90. The American transplant kept the bar and deleted the forum. *Randall v. Brigham* (1868) and *Bradley* (1872), both by Justice Field, imported the no-questioning rule as settled neutral law, a doctrine "as old as the law" resting on "a uniform course of decisions in England for centuries," *Randall*, 74 U.S. at 536, from the advocate's own report and without examining the proceeding that produced it; *Spalding* (1896) extended it to executive officers; *Pierson, Scheuer, Wood, Butz*, and *Harlow* built upward from there. Nor was the imported "uniform course of decisions" uniform: the same reporters held an officer acting without jurisdiction personally answerable, *The Case of the Marshalsea*, 10 Co. Rep. 68b, 77 Eng. Rep. 1027, 1039 (1612); *Houlden v. Smith*, 14 Q.B. 841, 117 Eng. Rep. 323 (1850); and the courts that assembled the shield did so with those cases in hand, confining immunity to judicial acts within jurisdiction. *Kemp v. Neville*, 142 Eng. Rep. 556, 568 (1861); *Scott v. Stansfield*, L.R. 3 Ex. 220, 221–23 (1868). What *Bradley* received as tradition was a selection made with the contrary authority in view. No decision in that line confronted the destroyed bill, the recovered record, the deleted forum, or the abolition of the issuing court itself: the Court of Star Chamber was abolished by the

Long Parliament in 1641 as "an intollerable burthen to the Subjects and the meanes to introduce an Arbitrary Power and Government," Habeas Corpus Act 1640, 16 Car. 1, c. 10 (App. 1 at 77), and its compelled-accusation practice (imposed on Floyd: close imprisonment "vntill hee shall have confessed his abettors") is the very practice the Supreme Court's Bill of Rights jurisprudence holds the Fifth Amendment was built to repudiate, *Miranda v. Arizona*, 384 U.S. 436, 458–59 (1966). And that same Act did more than abolish the court: it routed the subject's cause to "the ordinary Courts of Justice" and made a "Judge or Justice whatsoever" personally liable to the grieved party, so the transplant deleted not merely the forum but the statutory private remedy the tradition had substituted for it. The lineage thus descends from a tribunal the Anglo-American tradition itself condemned and abolished, through a proceeding whose record was destroyed and has now been recovered. The foundation question is open.

E. The Jury Was Eliminated at the Root, and Again in 1982, by Confession

91. The Anglesey trial jury was the one institution at the foundation that *functioned*: it asked for the authenticating evidence, was refused it by the judge, and begged the condemned man's forgiveness (§ 82, *supra*); the doctrine's first enabling condition was the displacement of the jury by the bench. The modern lineage re-performed that displacement, and confessed it: the English courts that assembled the shield rested it on keeping the judge free of "having the question submitted to a jury," *Scott v. Stansfield*, L.R. 3 Ex. at 223 (Kelly, C.B.), and *Harlow* acknowledged that an official's subjective good faith is "a question of fact that some courts have regarded as inherently requiring resolution by a jury"; and eliminated the question anyway, for official-side convenience: "distraction of officials," "inhibition of discretionary action," "deterrence of able people from public service." 457 U.S. at 816. The opinion contains no Seventh Amendment analysis. Neither does *Nixon v. Fitzgerald*, 457 U.S. 731 (1982), decided

the same day, which conceded the injured citizen bears "a regrettable cost" and offered checks on the *official* (impeachment, the press, Congress), nothing for the *person* injured. *Id.* at 754 n.37, 757. Justice White, for four Justices, named what had happened: the holding "is a reversion to the old notion that the King can do no wrong." *Id.* at 766 (White, J., dissenting). The Seventh Amendment commands that "the right of trial by jury shall be preserved." U.S. Const. amend. VII. No decision in the lineage has ever identified the constitutional authority for converting the jury's factual questions (reasonableness, intent, motive, capacity, coordination) into threshold questions of law for the bench. The authority does not exist; what exists is the practice, descending from a 1607 proceeding in which the jury asked for the evidence and the judge "would not permit it."

92. The founding text from which that fear rationale claims descent refutes it. The modern cases present the psychological premise as the Framers' design: "The Framers' design of the Presidency did not envision such counterproductive burdens on the 'vigor[]' and 'energy' of the Executive." *Trump*, 603 U.S. at 614 (citing *The Federalist* No. 70). But across the entire *Federalist*, "energy" and "vigor" appear fifty-three times, and not one occurrence denotes an office-holder's freedom from legal answerability, *Kirchner Decl.* ¶ 13; and No. 77 leaves the officer "at all times liable . . . to forfeiture of life and estate by subsequent prosecution in the common course of law." *The Federalist* No. 77 (A. Hamilton). The fear the doctrine protects is an ingredient the founding text does not supply.

93. Defendants' motion asks this Court to perform the same operation: to resolve, at the pleading stage, as questions of law, the factual questions this Complaint pleads, dismissing the individual-capacity constitutional claims before any jury exists to find them. *Mem.* at 25–27. The Declaration of Independence counted the device among the acts justifying independence

("protecting them, by a mock Trial, from punishment"; "depriving us in many cases, of the benefits of Trial by Jury"); and the founding generation's answer to the *Floyd* architecture was not to refine it but *United States v. Lee*: "No man in this country is so high that he is above the law. . . . All the officers of the government, from the highest to the lowest, are creatures of the law and are bound to obey it." 106 U.S. 196, 220 (1882); *accord Marbury*, 5 U.S. (1 Cranch) 137, 163 (1803).

F. The Narrow Consequence

94. One point must be met directly: whether a district court may examine the foundation of a doctrine the Supreme Court has long applied. It may, because a court is bound by what a prior court decided, not by what it assumed. "[Q]uestions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided as to constitute precedents," *Webster*, 266 U.S. at 511, a rule the Supreme Court has reaffirmed across eight decades and applied even to the premises of its "own judicial power or jurisdiction": where a point "was not there raised in briefs or argument nor discussed in the opinion of the Court . . . the case is not a binding precedent on this point," *United States v. L.A. Tucker Truck Lines, Inc.*, 344 U.S. 33, 38 (1952); *accord Cooper Industries, Inc. v. Aviall Services, Inc.*, 543 U.S. 157, 170 (2004); and "general expressions . . . are to be taken in connection with the case in which those expressions are used[;] [i]f they go beyond the case, they may be respected, but ought not to control the judgment in a subsequent suit," *Cohens v. Virginia*, 19 U.S. (6 Wheat.) 264, 399–400 (1821). The content of the *Floyd v. Barker* proceeding is exactly such an unexamined premise: no decision in the lineage litigated or ruled upon it; each cited it as settled and passed on (§ IX.B, *supra*). A court that examines it now therefore decides no question a superior court has foreclosed; it determines, for the first time, the

actual authority of a source the movants themselves place in issue by relying on it. That examination is, moreover, the Supreme Court's own settled method: where a doctrine is defended as "recognized ... even though the Constitution contains no explicit 'provision for immunity,'" *Trump*, 603 U.S. at 638, the Court requires the proponent to produce the historical pedigree and the court to examine it, *Vermont Agency*, 529 U.S. at 777–78. And what the founding court ordered defaced is now before this Court (§ IX.C, *supra*). To read it is not to overrule the doctrine; it is to preserve, on a complete record, the foundational question the Supreme Court alone may ultimately resolve.

95. Examination of a record-defective foundation is not an innovation; it is settled practice in three distinct lines. *Coram nobis* reaches errors "of the most fundamental character" in the trial court that made them, *United States v. Morgan*, 346 U.S. 502, 512 (1954), and it is the vehicle by which a district court, on recovered archival records showing "the court had before it a selective record," vacated a forty-year-old Supreme Court-affirmed conviction, *Korematsu v. United States*, 584 F. Supp. 1406, 1419 (N.D. Cal. 1984); accord *Hirabayashi v. United States*, 828 F.2d 591 (9th Cir. 1987). No repose protects a corrupted record: the "historic power of equity" reaches judgments procured on tampered records. *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238, 244–46 (1944). And recovered documents correct doctrine at the top: in *Erie Railroad Co. v. Tompkins*, 304 U.S. 64, 72–73 (1938), it was "the more recent research of a competent scholar, who examined the original document," that established a ninety-six-year construction "was erroneous"; *Vidal* did the same with recovered English court records, in an opinion by Justice Story (§ 89, *supra*). Those courts vacated convictions under an extraordinary writ and overruled a century of construction. Plaintiff asks far less: not vacatur, not overruling, only that a tendered defense be weighed against the recovered record of its own foundation. And

time supplies no distinction: no principle of law makes four hundred years more protective than forty.

96. What Plaintiff tenders is unprecedented only in its completeness; in every element it is preceded. No party in American history has restored the lost record of a doctrine's founding case and tendered it against that doctrine: the surviving manuscript record of *Floyd v. Barker* has never been transcribed, never published, and never examined by any court that relied on the doctrine descending from it, and the search underlying those statements is sworn, its scripts and census records retained and offered to the Court. Kirchner Decl. ¶¶ 3, 10–12, 18–19. But each element has been received before: recovered English court manuscripts correcting an American doctrine (*Vidal*, 1844); a recovered document correcting a settled construction at the Supreme Court (*Erie*, 1938); party-tendered archival records received against settled reliance (*Korematsu*, 1984). And every predecessor's record was readable the moment it was found; this record alone was locked (ten parchment membranes in secretary hand and Latin, unreadable to any American court for four hundred nineteen years), which is why its readability had to be manufactured, and has been, independently and under oath. Decl. of Christopher Whittick (ECF No. 72-1); Kirchner Decl. ¶¶ 14–17. The Court is therefore not asked to do anything a court has not done before. It is asked to do what courts have done before, at once, on a better evidentiary footing than any predecessor possessed: the custodian's own record copies where *Erie* had a footnote, cryptographic fixity manifests where the coram nobis petitioners had photocopies, and a sworn independent transcription where *Vidal* had the Crown's printers.

97. Plaintiff does not ask this Court to overrule *Harlow* or the immunity decisions the motion cites. The grounds set out above (§§ II.A, III, VI, VII, VIII) dispose of the motion without disturbing any holding. This section answers a different and narrower point: to whatever

extent Defendants tender the immunity lineage as *settled, ancient, neutral authority* whose pedigree forecloses examination; and the tender is express: the motion adopts the lineage's fear rationale as its own submission, Mem. at 24; the tender fails on the lineage's own recovered record. The foundation is a destroyed-record proceeding; the destruction was the doctrine's first act; the record has been recovered; and no court in the chain has ever looked at it. A doctrine cannot borrow from its fountainhead an authority the fountainhead obtained by suppressing the evidence against itself. The presumption of regularity Defendants would import from that lineage is the very presumption the founding court maintained by ordering a grieving brother's proof "utterly defaced" and imprisoning him until he named the people who helped him seek justice. This Court owes that inheritance no deference; and the Complaint before it pleads, in modern dress, the same evidentiary wrong the destroyed bill pleaded: a record never authenticated, impeached by its own sources, and shielded from examination by officials adjudicating their own regularity. And Plaintiff states the concession that frames the request: either merits outcome that follows evaluation is lawful. The operative authorities can end a case on immunity, or send the classification of conduct to a jury; Plaintiff can lose lawfully, after the record is weighed. What cannot lawfully occur is non-receipt: dismissal of the restored record without evaluation. A record, unlike an argument, is not contestable but inspectable — the manuscript either carries the jury's request for the drowning evidence or it does not; the catalogue either records "Bill wanting" or it does not (App. 1 at 12); each is settled by looking, and is immune to advocacy in either direction. The ask is receipt. It costs the Court nothing to satisfy, and the transcribed, docketed, and published record has removed every practical impediment to it. The wrong was real in 1607. The court that examined it chose, instead, to

destroy the proof and punish the man who brought it. Plaintiff asks this Court to be the court that reads the bill.

X. THE WITH-PREJUDICE REQUEST IS UNSUPPORTED BY ANY PART OF THE MOTION

98. The motion asks for dismissal "with prejudice, in its entirety," Mem. at 27, and its proposed order so provides. No section of the motion supports that disposition. The motion never argues futility of amendment, the predicate the with-prejudice request requires. *Firestone v. Firestone*, 76 F.3d 1205, 1209 (D.C. Cir. 1996) (per curiam) (requiring a determination that amendment "could not possibly cure the deficiency"). Its own authorities run the other way: *Morrissey* affirmed a *without-prejudice* service dismissal, 17 F.4th 1150; *Ciralsky* treats a with-prejudice Rule 8 dismissal of a nonfrivolous complaint as a "harsh sanction" whose refusal of leave to replead is "generally . . . an abuse of discretion," and polices even nominally without-prejudice dismissals for their "functional equivalent" preclusive bite, 355 F.3d at 669–71, 674; and the jurisdictional grounds the motion leads with cannot, by definition, produce a merits judgment. Fed. R. Civ. P. 41(b); *Semtek*, 531 U.S. at 505–06. Should the Court find any pleading defect in any count, Plaintiff requests leave to amend it; no amendment has ever been denied in this action, and no Rule 8 defect has ever been identified in the operative pleading by any court.

99. **The requests converge on a method.** Each ground of the motion ends in an appeal to the Court's discretion (its resources, its docket, the accumulated impression of other courts' remarks), and each omits the text that governs the discretion it invokes. On service, the motion asks for dismissal with prejudice under a rule whose own menu contains no such option: Rule 4(m) directs a court either to "dismiss the action without prejudice" or to "order that service be made," and Rule 4(i)(4)(A) commands ("must allow") a reasonable time to cure where, as here,

the United States has been served. ECF No. 68 ¶ 28. On Rule 8, it asks for the with-prejudice sanction without briefing its predicates: no more-definite-statement order ever issued, no persistence after a court has spoken, no showing of incurable deficiency. *McHenry*, quoted in *Ciralsky*, 355 F.3d at 670 n.9; *Michaelis*, 717 F.2d at 438–39; *Firestone*, 76 F.3d at 1209. On jurisdiction, it asks the Court to end the case "on jurisdictional grounds alone," Mem. at 3, across the line that separates jurisdiction from merits, *Bell v. Hood*, 327 U.S. at 682; *Steel Co.*, 523 U.S. at 91, and its atmospherics ask for a review of other districts' decisions the motion's own authority forbids. *Klayman*, 49 F.4th at 552–53. Discretion is the space the rules leave after their commands are honored, and what the motion styles as an appeal to that discretion is a request to exercise it against the texts that confer it.

XI. CONCLUSION

100. The motion should be denied. In the alternative, as to any element the Court treats as factually contested, Plaintiff requests jurisdictional discovery (§ II.G, *supra*); as to service, the relief ECF No. 68 § VII requested (§ IV, *supra*); and as to any count found deficiently pled, leave to amend. The claims the government never engaged (the pleaded, documented, particularized injuries at the center of this case) proceed either way.

Respectfully submitted,

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Dated: August 28, 2026